

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Team # 4	CCRB Case #: 201410323	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Thursday, 06/12/2014 10:30 AM	Location of Incident: 70th Precinct stationhouse	18 Mo. SOL 12/12/2015	Precinct: 70
Date/Time CV Reported Wed, 10/08/2014 1:45 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 10/08/2014 1:45 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Carmine Confessore	08237	947729	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Asghar Mahmood	10657	942101	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Carmine Confessore	Discourtesy: PO Carmine Confessore acted rudely toward § 87(2)(b)	A . Unsubstantiated
B . POM Carmine Confessore	Off. Language: PO Carmine Confessore made remarks to § 87(2)(b) based upon his mental disability.	B . Unsubstantiated

Case Summary

On June 12, 2014, at approximately 10:30 a.m., at § 87(2)(b), in Brooklyn, § 87(2)(b) called 911 after having a dispute with his roommate. PO Confessore arrived to the scene and arrested § 87(2)(b). At the 70th Precinct stationhouse, § 87(2)(b) became unresponsive and was taken to § 87(2)(b). § 87(2)(b) then returned to the 70th Precinct stationhouse, where he used the holding cell telephone. PO Confessore allegedly took the phone from § 87(2)(b) hung it up (**Allegation A**) and called § 87(2)(b) a “fucking retard” (**Allegation B**) (complaint encl. B-1).

Mediation, Civil, and Criminal Histories

This case was ineligible for mediation due to § 87(2)(b)'s arrest. The notice of claim was requested on December 24, 2014, and will be added to the case file upon receipt. § 87(2)(b) [§§ 86(1)(2)&(4)] § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Encl. A-2).
- PO Confessore has been a member of the NYPD for 6 years and has had no previous CCRB allegations (Encl. A-1).

Potential Issues

§ 87(2)(b) provided the name § 87(2)(b) to the CCRB, but provided the name § 87(2)(b) to both the NYPD and § 87(2)(b). It was confirmed that these two names corresponded to the same individual, however, as PO Confessore only made one arrest on the day of the incident and the arrest location corresponded to the date and location provided by § 87(2)(b) (Encl. D-3 and Encl. F-1-F-3).

Findings and Recommendations

Recommendations

Allegation A – Discourtesy: PO Carmin Confessore acted rudely towards § 87(2)(b)

§ 87(2)(b) alleged that PO Confessore hung up the phone he was speaking on (Encl. C-1-C-3). PO Confessore acknowledged interacting with § 87(2)(b) but denied any recollection of § 87(2)(b) using the phone and denied hanging up the phone (Encl. D-1-D-6). § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Offensive Language: PO Carmin Confessore made remarks to § 87(2)(b)

§ 87(2)(b) based upon his mental disability.

§ 87(2)(b) § 87(2)(b), alleged that PO Confessore called him a “fucking retard” (Encl. C-1-C-3). PO Confessore denied making this statement or using

profanity. He also denied making any reference to § 87(2)(b)'s mental capacity. § 87(2)(b) identified PO Mahmood of the 70th Precinct, who he knew by name from previous interactions, as being in the holding cell area during the time of the incident. PO Mahmood was also interviewed and could not recall the incident (Encl. D-1-E-5). § 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Team: Pod 9

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date